SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA

Department 16

Honorable Vincent I. Parrett, Presiding

191 North First Street, San Jose, CA 95113

Telephone: (408) 882-2270

September 9, 2026

9:00 and 9:01 A.M.

Unauthorized Recording of Court Proceedings will be Punished

ORAL ARGUMENT

If you are contesting the tentative ruling then by 4 PM today you must notify:

(1) The Court by calling **(408) 808-6856**, and

(2) The other side by phone or email that you will appear at the hearing to contest the tentative.

If you fail to notify the court and opposing side by 4 PM then no oral argument will be heard and the tentative ruling becomes the final ruling. (C.R.C. 3.1308(a)(1) & Local Rule 8.D.)

APPEARANCES

The Court encourages in-person appearances for all matters.

The Court discourages remote appearances.

The Court forbids phone-only appearances.

If, despite the above clear guidance, you still elect to appear remotely in Department 16 then you must appear by video using our Court's Unicorn Digital Courtroom ("UDC") system. If for whatever reason you do not like using UDC, *then come to D16 in person.*

To use UDC, click or copy and paste this link into your internet browser & scroll to Department 16: https://www.scscourt.org/general_info/ra_teams/video_hearings_teams.shtml When using UDC you must *separately register for each case* in which you appear remotely. If you find UDC too cumbersome, *then come to D16 in person.*

Proposed Orders filed by counsel after the hearing must include the Judicial Council Form EFS-020 Proposed Order Cover Sheet.

LINE	CASE NO.	CASE TITLE	TENTATIVE RULING
9:01 1	2008-1-CV-104731	*Hudson & Keyse, LLC* *v.* *Fermen W. Smith*	**Hearing on Claim of Exemption of Samantha Smith-Cook as spouse of Judgment Debtor Fermen W. Smith.** In her Claim of Exemption filed on July 30, 2026, Samatha Smith-Snook, as spouse of Judgment Debtor Fermen W. Smith, seeks exemption from a Levy made on deposit accounts at Chase Bank to pay this debt. She asserts that the "funds in the deposit accounts that are the subject of the Notices of Levy are necessary to support our household." Claim of Exemption, Attachment 8 to EJ-160 (July 30, 2026). But as Judgment Creditor Collect Access c/o Zee Law Group shows in Opposition, this Claim of Exemption fails because Smith-Snook, as the person claiming Exemption as spouse of the Judgment Debtor, does not carry her burden under Code of Civil Procedure Section 703.530 to establish that the levied funds are exempt *by proving by evidence* that the funds at issue are reasonably necessary for their support. After reviewing all the papers submitted, and in the broad exercise of its discretion, the Court finds that Smith-Snook has not carried that burden. Moreover, Smith-Snook has not established that paying this debt through this levy will cause hardship. Accordingly, the Claim of Exemption of Samantha Smith-Cook as spouse of Judgment Debtor Fermen W. Smith is **DENIED.** Judgment Creditor Judgment Creditor Collect Access, LLC c/o Zee Law Group, P.C., is to prepare and file a formal order **within 10 days after this hearing.** **SO ORDERED.**

9:01 2			
9:01 3			
9:01 4			
9:01 5			
9:00 1	26CV493354	*Abel Gonzalez v. Toby Tilford, et al.*	**Order on Defendants' Demurrer to Plaintiff's Complaint** *See* Line 1 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal Order.
9:00 2	25CV480145	*Theo Van Buren v. Bill Holdings Inc., et al.*	**Order on Defendant Milind Nimesh's Demurrer to Plaintiff's Complaint** As this entire action has been dismissed at Plaintiff's request made on September 1, 2026, this Demurrer is **OFF CALENDER** as **MOOT**. And all future hearings in this dismissed action are **VACATED.** **SO ORDERED.**
9:00 3	25CV478200	*Kamila Kraba v. Armsby Lane Road Association*	**Order on Plaintiff's Motion to Vacate Void Order, Confirm Entry of Default, and Strike Answer and Cross-Complaint** *See* Line 3 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal Order.

9:00 [4](#)	26CV485448	*Craig Rotbert* *v.* *Apele Builder, Inc., et al.*	**Order on Plaintiff's Motion to Deem Plaintiff's Request for Admissions, Set One ("RFAs"), Admitted by Defendant Manny Borja, Sr.** As trial of this case is set for September 8, 2026—the trial date set at *Plaintiff's* request for trial preference (*see* Order, June 4, 2026)—and as the parties have already attended the Trial Assignment Hearing before Supervising Civil Division Judge Deen on September 3, 2026, where they were ordered to submit the pretrial package (including motions *in limine*) for the Trial Judge by September 4, 2026, the issues raised by Plaintiff in this Motion must now be presented to and determined by the Trial Judge, to whom this pre-trial Civil Case Manager defers. So this Motion in Department 16 today is **OFF CALENDAR**. **SO ORDERED.**
9:00 [5](#)	20CV371971	*Vahe Tashjian* *v.* *Planet Home Lending, LLC, et al.*	**Order *Sua Sponte* CONTINUING Plaintiff's Motion to Release to Plaintiff the $304,000.00 Bond** *See* Line 5 below for complete tentative ruling ***sua sponte*** **CONTINUING** this Motion to April 28, 2027 at 9:00 AM in Department 16. After the hearing, the Court will prepare and file the formal Order.
9:00 [6](#)	22CV397444	*Swaminathan Nandakumar, et al.* *v.* *David Plagens, et al.*	**Order on Cross-Complainants David Plagens and Linda Plagens' Motion To Enforce Settlement Agreement** *See* Line 6 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal Order.

9:00 7	25CV461494	*Bryan Martin* *v.* *General Motors, LLC*	**Order on Defendant General Motors LLC's Motion for Compliance under C.C.P. § 871.26 and for Sanctions** As this Motion was withdraw at the request of the moving party GM on August 28, 2026, this Motion is **OFF CALENDAR.** **SO ORDERED.**
9:00 8	25CV471178	*Daniel Cahn* *v.* *Daric Holdings Incorporated, et al.*	**Order on Defendant Daric Technologies, Inc.'s' Motion to Require Plaintiff to Post Undertaking Under C.C.P. § 1030** *See* Line 8 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal Order.
9:00 9			
9:00 10			
9:00 11			
9:00 12			
9:00 13			
9:00 14			
9:00 15			

Line 1

Case Name: *Abel Gonzalez v. Toby Tilford, et al.*

Case No.: 26CV493354

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendants Better Care, Inc. and Better Care, Inc. dba The Redwoods Post Acute (sued as Redwood Post Acute) ("Defendants") demur under Code of Civil Procedure Section 430.10 to the Complaint of Plaintiff Abel Gonzalez ("Plaintiff") on the grounds that the Complaint is fatally uncertain and fails to allege facts sufficient to constitute a cause of action against Defendants. Notice of Demurrer (the "Demurrer") at 1:27-2:5 (filed: July 6, 2026).

The Demurrer came on for hearing on September 9, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Fact Allegations

According to the Plaintiff's Declaration attached to the Complaint:

- "Defendants failed to maintain the non-delegable duty of care mandated by California Title 22, section 72501. This failure constitutes a material breach of established safety standards, resulting in the deprivation of essential care protocols".

- "The Defendants engaged in willful misconduct by intentionally rationing clinical resources to bolster corporate expansion. This economic prioritization over the mandatory standard of care satisfies the criteria for punitive damages under California law."

- "The facility's operational failures were not isolated lapses, but a systemic departure from the standard of care, demonstrating a reckless disregard for the safety and physical integrity of the residents."

(Gonzales Declaration ¶¶ 1-3)

According to the Plaintiff's "Statement of Undisputed Facts" attached to the Complaint:

- " The 'Never Event': On [Date], the facility failed to provide standard IV care, resulting in a critical incident. This failure occurred during a period of documented understaffing.

- "Statutory Discharge Violation (SB 1152): The facility failed to execute the mandated discharge checklist required by SB 1152, constituting a per-se violation of California law."

- "Notice of Breach: Defendant was served with a formal "Accelerator Protocol" demand on [Date]. Defendant failed to provide a timely or substantive response, establishing willful indifference to the regulatory breaches."

- "False Claims Act (FCA) Nexus: Despite knowing of the operational non-compliance (via notice and internal review), the Defendant knowingly submitted claims for government payment (Medi-Cal/Medicare) while the facility operated in violation of safety standards."

(Statement of Undisputed Facts ¶¶ 3-6)

Plaintiff filed this Complaint on May 11, 2026, seemingly alleging causes of action for general negligence, intentional tort, Title 22, SB 1152, breach of mandated treatment, and elder abuse.

II. Legal Standards

"The party against whom complaint or cross-complaint has been filed may object, by demurrer or answer as provided in [Code of Civil Procedure] section 430.30, to the pleading on any one or more of the following grounds: . . . (e) The pleading does not state sufficient facts to constitute cause of action, (f) The pleading is uncertain." (C.C.P. § 430.10(e) & (f).)

A demurrer may be used by "[t]he party against whom complaint has been filed" to object to the legal sufficiency of the pleading as whole, or to any "cause of action" stated therein, on one or more of the grounds enumerated by statute. (C.C.P. §§ 430.10 & 430.50(a).)

A demurrer tests the legal sufficiency of the factual allegations in a complaint." (*Redfearn v. Trader Joe's Co.* (2018) 20 Cal. App. 5th 989, 996.) The court must determine "whether the complaint alleges facts sufficient to state a cause of action or discloses a complete defense." (*Ibid.*) The court assumes "the truth of the properly pleaded factual allegations, facts that reasonably can be inferred from those expressly pleaded and matters of which judicial notice has been taken." (*Ibid.*) Whether the plaintiff will be able to prove the pleaded facts is irrelevant to ruling upon the demurrer. (*Erlach v. Sierra Asset Servicing, LLC*, (2014) 226 Cal. App. 4th 1281, 1291.)

Courts "give the complaint a reasonable interpretation, reading it as a whole and its parts in their context." (*Goncharov v. Uber Techs., Inc.* (2018) 19 Cal. App. 5th 1157, 1165.) Courts "construe the complaint 'liberally … with a view to substantial justice between the parties[.]'" (*Ibid.*) "A demurrer must dispose of an entire cause of action to be sustained." (*Fremont Indem. Co. v. Fremont Gen. Corp*. (2007) 148 Cal. App. 4th 97, 119.)

Under Code. Civ. Proc. § 430.10(f), a demurrer may also be sustained if a complaint is uncertain i.e., ambiguous and unintelligible. Demurrers for uncertainty are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond. A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures. *(*See*, A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 695; internal citation and quotes omitted.)

Even if a demurrer is sustained, leave to amend the complaint is routinely granted under California law. "Liberality in permitting amendment is the rule, if fair opportunity to correct any defect has not been given." (*Angie M. v. Superior Court* (1995) 37 Cal. App. 4th 1217, 1227.) "Unless the complaint shows on its face that it is incapable of amendment, denial of leave to amend constitutes an abuse of discretion, irrespective of whether leave to amend is requested or not." (*McDonald v. Sup. Ct. (Flintkote Co.)* (1986) 180 Cal. App. 3d 297, 303-304.)

A court may, upon motion, or at any time in its discretion, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc, § 436, subd. (a).) Furthermore, a court may also strike all, or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc, § 436, subd. (b).) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc, § 437.)

III. Analysis of the Demurrer

Defendants contend the complaint is not viable because: (1) it is uncertain and unintelligible as to what causes of action are being asserted against what defendants, and (2) it fails to allege sufficient facts constituting the required element for each cause of action. The Court agrees that that it is so uncertain and unintelligible that Defendants have no fair notice of what claims Plaintiff is making against them.

California Rules of Court, rule 2.112, requires that each separately stated cause of action or count specifically state its number (e.g., first cause of action), its nature, the party asserting it, and the party/parties to who it is directed at. ." (Rules of Court, rule 2.112.)

Code of Civil Procedure section 425.10 requires a complaint to contain "[a] statement of the facts constituting the cause of action, in ordinary and concise language." (Code. Civ. Proc. § 425.10(a).)

Plaintiffs' Complaint violates both Code of Civil Procedure section 425.10 and California Rules of Court, rule 2.112, by failing to delineate separate causes of action, to identify which cause of action is directed against which defendant, or coherently reference any provision or principle of law that was allegedly violated.

Furthermore, despite the Complaint's verbose presentation and inclusion of extraneous materials, it is uncertain, unintelligible, and severely disorganized. Using the Judicial Council Form, Plaintiff lists general negligence, intentional tort, Title 22, SB1152, breach of mandated treatment, and elder abuse. But the form complaint contains only one form attachment identifying the first cause of action as "Intentional Tort." (Complaint PLD-PI-001, ¶ 10) The Form Complaint seemingly is supplemented by other documents titled: "Document Title (e.g., complaint for damages)", "Statement of Justification for Exemplary Damages", "Action of Cause", "Exemplary Damages Attachment", "Statement of Undisputed Facts", "Notice of Related Case Supplemental Statement", "Notice of Related Case", "Declaration of Abel Gonzales", and "Complaint for Damages". Plaintiff's supplemented one page "Complaint for Damages" lists fraudulent inducement, false claims act (Gov. Code § 12651), SB 1152, Title 22, and spoilation as causes of action.

On its face as presented, the Complaint contains conflicting lists of causes of action. Thus, the Court cannot determine whether there are five, seven, or eight causes of action or whether the fraudulent inducement and intentional tort are the same claims.

While demurrers for uncertainty are strictly construed and generally disfavored because most ambiguities can be clarified through discovery, the uncertainty here goes far beyond mere ambiguity. (See, *Chen v. Berenjian* (2019) 33 Cal.App.5th 811, 822.) The Complaint is so inadequately organized and fundamentally unintelligible that Defendants cannot reasonably determine what legal claims they must defend against or which factual allegations apply to them as opposed to the Link Healthcare Group, Toby Tilford, or Curtis Rodriguez. The Complaint contains no differentiation between claims against the entity defendants and each individual defendant. Although a Complaint can withstand a demurrer for uncertainty if it clearly sets forth the facts relied upon, Plaintiff's Complaint fails even this lenient standard.

Moreover, Plaintiff has not filed a formal Opposition contesting the merits of Defendants' Demurrer. Instead, on August 11, 2026, Plaintiff filed his declaration requesting the Court to strike Defendants' demurrer and motion to strike on the grounds that Judge Zayner's June 29, 2026, Order stayed all responsive pleadings until after the initial case management conference.

The Court has the discretionary power to construe Plaintiff's August 11, 2026, declaration as his opposition to Defendants' motion. (See *Lewis v. Superior Court* (2008) 169 Cal.App.4th 70, 77 ["[t]he label given a petition, action or other pleading is not determinative; rather, the true nature of a petition or cause of action is based on the facts alleged and remedy sought in that pleading."]; *Sole Energy Co. v. Petrominerals Corp.* (2005) 128 Cal.App.4th 187, 193 [a trial court is free to consider a motion regardless of its label and "[t]he proposition that a trial court may construe a motion bearing one label as a different type of motion is one that has existed for many decades."]; *CPF Agency Corp. v. R&S Towing* (2005) 132 Cal.App.4th 1014, 1021 [trial court had inherent authority to treat motion to dismiss as a motion to strike]; *Prue v. Brady Co./San Diego, Inc.* (2015) 242 Cal.App.4th 1367, 1384 [court can treat summary judgment motion as motion for judgment on the pleadings].)

Nevertheless, Plaintiff's Opposition fails badly since he misrepresents Judge Zayner's Order. On June 29, 2026, Judge Zayner ruled that this case does not qualify as complex under California Rules of Court 3.400, as stated on the first page of the Order. Furthermore, the Order expressly *eliminated* any stay on responsive pleadings by *striking out* that language on page two of the Order. Hence, Plaintiff's Opposition is as false as it is wrong.

For all these reasons, the Court **SUSTAINS** the Demurrer on the ground of uncertainty.[1]

That said, in light of the famous liberality of California law permitting amendments to initial complaints when a demurrer has been sustained (*Angie M.*, 37 Cal. App. 4th at 1227), the Court will give Plaintiff this one fair opportunity to amend the Complaint to try to remedy the serious pleading deficiencies identified in this Order. Accordingly, the Court gives Plaintiff **LEAVE TO AMEND** the Complaint **within 10 days of today.**

IV. Analysis of the Motion to Strike

Given the Court's ruling **SUSTAINING** the Demurrer to *all of the Complaint*, the Court need not and does not resolve the Motion to Strike *portions of the Complaint* as it is now moot.

V. Conclusion & Order

For the reasons explained above, Defendants' Demurrer to the entire Complaint is **SUSTAINED WITH LEAVE TO AMEND within 10 days of today.**

In light of that ruling, Defendants' Motion to Strike portions of the Complaint is **DENIED** as moot.

SO ORDERED.

Date: September 9, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

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[1] As the Court **SUSTAINS** the Demurrer on the ground of uncertainty, the Court need not and does not reach or resolve Defendants' alternative ground for Demurrer that the Complaint fails to allege facts sufficient to constitute any cause of action.

<u>Line 2</u>

Case Name: *Theo Van Buren v. Bill Holdings Inc., et al.*

Case No.: 25CV480145

See ORDER above. (As this entire action has been dismissed at Plaintiff's request made on September 1, 2026, this Demurrer is **OFF CALENDER** as **MOOT**. And all future hearings in this dismissed action are **VACATED**.)

Line 3

Case Name: *Kamila Kraba v. Armsby Lane Road Association*

Case No.: 25CV478200

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Kamila Kraba ("Plaintiff") moves for an order:

1. Vacating the January 12, 2026, ex parte order that set aside the default previously entered against Defendant Armsby Lane Road Association ("ALRA");

2. Confirming the Entry of Default against ALRA dated December 16, 2025; and

3. Striking the Answer and Cross-Complaint filed by ALRA on January 14, 2026, on the grounds that they were filed pursuant to a void order and by an association lacking legal counsel.

Notice of Motion (the "Motion") at 2:20-29 (filed: Jan. 28, 2026).

The Motion is made under Code of Civil Procedure Sections 473(b) and 473(d) on the grounds that the January 12, 2026 ex parte order is void and was obtained through extrinsic fraud, specifically, that it was entered without proper notice, without a meaningful opportunity to be heard, based on an unauthorized appearance by an unincorporated association without counsel, an in reliance on a fraudulent Proof of Service and an inapplicable personal-service requirement. *Id.* at 2:30-35. [2]

The Motion came on for hearing on September 9, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Procedural Background

Plaintiff filed this civil action on October 21, 2025, alleging causes of action for: breach of contract; governance violations; reckless disregard of members' rights; breach of fiduciary duty; reckless disregard of her rights to transparency, accuracy, due diligence related to Armsby Lane road repairs; rigid enforcement of Civil code § 845 without due process; selective enforcement of the 2004 road agreement; refusal to mediate per Civil Code § 5935; and Breach of fiduciary duty: VP serves as ALRA counsel. (Complaint PLD-

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[2] For the record, the Court notes that these are the actual (albeit unusual) lines numbers in this Motion.

C-001, ¶¶ 8, 9, 11, MC-025 Attachment to the Complaint.)

ALRA did not respond to the complaint within the statutory time period. Therefore, on December 16, 2025, Plaintiff filed a Request for Entry of Default, which the clerk entered that same day.

On January 12, 2026, the Court granted ALRA's ex-parte application to set aside the default. On January 14, 2026, ALRA filed an answer and a verified cross-complaint through its president without counsel.

On January 28, 2026, Kraba filed her motion to vacate the January 12, 2026, order, confirm entry of default, and strike ALRA's answer and cross-complaint, asserting the order is void.

On August 19, 2026, the Court sustained Plaintiff's demurrer to ALRA's cross-complaint and found that ALRA had improperly filed its Ex Parte Application, Answer, and Cross-Complaint without licensed counsel in violation of California law prohibiting unincorporated associations from appearing in propria persona. The Court struck all three documents from the record and reinstated the December 16, 2025, default. The Court gave ALRA leave to file a First Amended Cross-Complaint through licensed counsel within 30 days, and leave to file a motion to set aside the December 16, 2025, default on equitable grounds and for leave to file an answer.

On August 31, 2026, ALRA's newly retained counsel filed a "Notice of Mootness" asserting that Plaintiff's Motion to Vacate is now moot and requesting that the September 9, 2026, hearing be taken off calendar. Plaintiff filed an objection to the Notice of Mootness on September 1, 2026, arguing that material issues remain unresolved and that only the moving party or the Court may remove a properly noticed motion from the calendar.

II. Legal Standard

Under Code of Civil Procedure section 473, subdivision (d): "[t]he court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order."

A void order or judgment may be directly or collaterally attacked at any time. (*People v. American Contractors Indemnity Co.* (2004) 33 Cal.4th 653, 660; *County of San Diego v. Gorham* (2010) 186 Cal.App.4th 1215, 1228.) Even when relief is not available under a statute, the court retains inherent power to vacate void orders. (*American Contractors*, *supra*, 33 Cal.4th at p. 660; see also *Plaza Hollister Ltd. Partnership v. County of San Benito* (1999) 72 Cal.App.4th 1, 15.)

III. Analysis of the Motion

At the August 19, 2026, hearing on Plaintiff's Demurrer to the ALRA's Cross-Complaint, the Court issued a comprehensive Order that addressed the relief Kraba now seeks in her Motion to Vacate. (See Order filed August 19, 2026).

The Court found that between January 12-14, 2026, ALRA filed its ex-parte application to set aside the December 16, 2025, Default, its answer, and its cross-complaint through its president Cisewski and not through a licensed attorney. Therefore the Court concluded that these documents were improperly filed by ALRA. (Order at 6:18-24)

The Court explicitly ruled: "the Court should not have granted ALRA's January 12, 2026, Ex Parte Application because it was improperly filed. By granting that improperly-filed Ex Parte Application to vacate the December 16, 2025, Default, the Court improperly vacated that Default". (Order at 8:17-21)

Consequently the Court ordered: (1) "ALRA's Ex Parte Application filed on January 12, 2026, when ALRA was not represented by counsel is STRICKEN; (2) "ALRA's Answer filed on January 14, 2026, when ALRA was not represented by counsel is STRICKEN"; (3) "The Clerk of the Court is ORDERED to re-enter and reinstate now the Default entered in favor of Kraba and against ALRA on December 16, 2025"; and (4) "Kraba's Demurrer to the Cross-Complaint is SUSTAINED, with ALRA given LEAVE TO AMEND to file a First Amended Cross-Complaint through its licensed counsel of record within 30 days of today." (Order at 9:9-18)

Therefore, the Court substantially granted the relief that Plaintiff now seeks in her Motion to Vacate. The practical effect of the Court's August 12, 2026 Order is this: the January 12, 2026 ex parte order is vitiated because the Court ordered reinstatement of the Default that the January 12, 2026 ex parte order had vacated. The January 12, 2026 ex parte order thus now has no force or effect whatever.

On August 31, 2026, ALRA filed its "Notice of Mootness as to Kamila Kraba's Motion to Vacate Void Order; Confirm Entry of Default; and Strike Answer and Cross-Complaint" asserting the motion is now moot considering the Court's August 19, 2026, Order. (Notice of Mootness at 1:26-2:2)

Plaintiff, however, now objects to the mootness of her Motion on the following grounds:

1. ALRA Cannot Unilaterally Remove Plaintiff's Motion. (Objection at 2:24-29)

2. "The foundational legal and factual errors contained in ALRA's Ex Parte Application remain active baseline disputes that must be formally ruled upon to prevent ongoing waste of judicial and community resources." (Objection at 3:74-77)

As part of her objections, Plaintiff now seeks binding determination on three legal issues: (1) service requirements under Code of Civil Procedure section 416.40, (2) applicability of Civil Code section 845(b) , and (3) ALRA's contractual authority to levy assessments and liens.

But Plaintiff's Motion to Vacate seeks relief (vacating an order, confirming default, striking pleadings), *not* declaratory rulings on abstract legal questions. The Motion is brought under Code of Civil Procedure sections 473(b) and 473(d) for specific remedial relief, not as a request for advisory opinions on legal issues that might arise in future proceedings.

Plaintiff cannot avoid that this Motion is Moot by arguing that collateral legal issues embedded in a motion deserve resolution after the primary relief has been granted through other means. The appropriate forum for establishing binding rulings on service requirements, statutory applicability, and contractual interpretation is in the context of actual motions or proceedings where those issues are determinative of relief that remains available.

At bottom, Plaintiff's argument essentially seeks to convert a motion for specific relief—which has already been granted in the August 19, 2026 Order—into a vehicle for obtaining advance rulings on legal issues that may arise in future proceedings. And giving advance rulings on issues that might arise in the future is something this Court does not do.

VI. Conclusion & Order

As the Court now finds that Plaintiff's Motion is moot in light of the August 19, 2026 Order, the Court **ORDERS** this moot Motion to be taken **OFF CALENDAR** now.

SO ORDERED.

Date: September 9, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

Line 4

Case Name: *Craig Rotbert v. Apele Builder, Inc., et al.*

Case No.: 26CV485448

See ORDER above. (As trial of the case already started on September 8, 2026—the trial date set at *Plaintiff's* request for trial preference (*see* Order, June 4, 2026)—the issues raised by Plaintiff in this Motion must now be presented to and determined by the Trial Judge, to whom this pre-trial Civil Case Manager defers. So this Motion in Department 16 today is **OFF CALENDAR**.)

Line 5

Case Name: *Vahe Tashjian v. Planet Home Lending, LLC, et al.*

Case No.: 20CV371971

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

On July 14, 2026, Plaintiff Vahe Tashjian ("Plaintiff") filed this motion to release to Plaintiff $304,000.00 in bond money that Plaintiff paid into the Court as a condition of enjoining the pending foreclosure sale on his property located at 901 Loyola Drive, Los Altos, CA 94024. Notice of Motion (the "Motion") at 1:20-24 (filed: July 14, 2026). This Motion is set for hearing on September 9, 2026.

However, as Plaintiff is well aware, less than one month before Plaintiff filed this Motion on July 14, 2026, nonparty Bell Investment Partners, LLC ("Bell Investment") on June 15, 2026 filed an ex parte application to release to Bell Investment the same exact $304,000.00 in bond money. According to Bell Investment in that ex parte application, a "valid and unsatisfied money judgment has been entered in favor of Judgment Creditor Bell Investment against Judgment Debtor Vahe Tashjian"—Plaintiff in this action—and "[b]ecause the funds on deposit represent property in which Judgment Debtor holds a 'right to payment' or 'beneficial interest,' the funds are subject to enforcement and turnover under Code of Civil Procedure Sections 708.510." Ex Parte Application at 1:25-2:2:2 (filed: June 15, 2026, Case No. 20CV371971. Plaintiff is keenly aware of that application because Plaintiff promptly filed an opposition to it that same day on June 15, 2026.

As Plaintiff is also aware, later that same day on June 15, 2026, the Court signed and dated an Order DENYING Bell Investment's ex parte application. The Court did *not* reach the merits of that application but rather denied it solely on the ground that it did not meet the standard for emergency ex parte relief of showing that "irreparable harm or immediate danger will result if emergency relief is not granted." Order at 2:8-10 (citing CRC 3.1202(c)) (filed: June 24, 2026.). Making crystal clear to all that the Court wants this important issue of who gets the $304,000.00 decided in the normal course after full briefing by noticed motion involving *all* relevant parties, the Court ORDERED Bell Investments: "Bring a noticed motion." *Id.* at 2:12.

When Plaintiff on July 14, 2026 filed a noticed Motion to release to Plaintiff the $304,000.00 bond, the Clerk of the Court set Plaintiff's Motion for hearing on September 9, 2026. But when Bell Investments, following the Court's direct order to bring a noticed motion, filed its noticed motion (styled as an "application") just one week later on July 21, 2026—to release the exact same $304,000.00 bond—the Clerk of the Court set Bell Investments' motion for hearing on April 28, 2027.

Disappointingly, despite Plaintiff's counsel being well aware of Bell Investment's noticed motion filed on July 21, 2026 and set for hearing on August 28, 2027, instead of meeting and conferring with Bell Investment's counsel to try to reach a stipulation when both of these entwined motions about the same exact $304,000.00 bond could be heard on the same hearing date, Plaintiff doubled down by filing a "Notice of Non-Opposition" with an accompanying Declaration by Plaintiff's counsel Caleb Gonzalez on September 1, 2026.

Despite well knowing that Bell Investment's position *is* that this $304,000.00 bond should be released to Bell Investments, attorney Gonzalez *quite misleadingly* tells the Court in his sworn Declaration that there is "no opposition" to Plaintiff's Motion *to release the $304,000.00 bond to Plaintiff* and pretends that "[i]t is not clear why counsel for Bell Investment Partners, LLC, filed a separate motion seeking [the same] funds[.]" Declaration of Caleb Gonzalez at ¶ 8 (filed Sept. 1, 2026).

Attorney Gonzalez would be wise to never make a misleading statement like that to the Undersigned Judge again. Attorney Gonzalez knows *exactly* why Bell Investments filed its noticed motion to release the $304,000.00 bond to Bell Investments—because the Court directly *ordered* Bell Investments to do so in the Court's June 15, 2026 Order. *See* Order at 2:12 ("Bring a noticed motion.")

While attorney Gonzalez would no doubt protest that it is (hyper)technically true that Bell Investments did not file a separate ***opposition brief*** to Plaintiff's Motion, attorney Gonzalez knows beyond any doubt that it is Bell Investments position of record in *this* case that the $304,000.00 bond should be released to Bell Investments, *not* to Plaintiff—and so Bell Investments does in fact ***oppose*** the release of the $304,000.00 bond to Plaintiff now. *See* June 15, 2026 Ex Parte Application by Bell Investments to Release Bond *and* July 21, 2026 Noticed Motion by Bell Investments to Release Bond. To suggest otherwise and not engage the arguments of Bell Investments on their merits is, to say the least, not in keeping with the high standards of professionalism expected by counsel who appear in Santa Clara County Superior Court.

Given the importance of this issue of whom the Court will release the $304,000.00 bond to, the Court demands full briefing on *both* Plaintiff's Motion filed on July 14, 2026 and Bell Investment's Motion filed on July 21, 2026. To that end, the Court ***sua sponte*** **CONTINUES** the hearing on Plaintiff's Motion to April 28, 2027 at 9:00 in Department 16, where the Court will hear argument on Plaintiff's Motion to Release the $304,000.00 bond during the same hearing and at the same time already set for hearing on Bell Investments' Motion to Release the $304,000.00 bond. All Opposition and Reply papers to both those motions will be filed pursuant to the deadlines set forth in Code of Civil Procedure Section 1005(b), pegged to the April 28, 2027 hearing date on both motions.

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Conclusion & Order

For the reasons explained above, the Court ***sua sponte*** **CONTINUES** Plaintiff's Motion to release to Plaintiff the $304,000.00 bond money. Specifically, the Court **ORDERS**:

1. **Plaintiff's Motion** is **CONTINUED** to April 28, 2027, at 9:00 AM in Department 16.

2. **Bell Investment's motion** to release to Bell Investment the $304,000 bond money **REMAINS AS SET** on April 28, 2027, at 9:00 AM in Department 16.

3. Opposition and Reply papers to both those motions will be filed per Section 1005(b), pegged to the April 28, 2027 hearing date for both motions.

4. Plaintiff's counsel Gonzales will serve a copy of this **ORDER** on counsel for Bell Investment—Catherine Schlomann Robertson and Ginger L. Sotelo of Spencer Fane LLP— both by email and by overnight Federal Express today.

SO ORDERED.

Date: September 9, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

Line 6

Case Name: *Swaminathan Nandakumar, et al. v. David Plagens, et al.*

Case No.: 22CV397444

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Cross-Complainants David Plagens and Lisa Plagens (the "Plagens Cross-Complainants") move under Code of Civil Procedure Section 664.6 to enforce the settlement agreement reached by a written email exchange on June 17-18, 2026. Notice of Motion (the "Motion") at 1:22-25 (filed: July 13, 2026).

The Motion came on for hearing on September 9, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Facts

This is a neighbor and property-line dispute between the Nandakumars (Plaintiffs/ Cross-Defendants) and the Plagens (Defendants/Cross-Complainants) over conflicts over a shared fence and boundary line. Plaintiffs filed the present Complaint on April 22, 2022, and Defendants filed their Cross-Complaint on September 16, 2022. Suffice it to say that these parties have a long history of litigation over the same fence and property issues.

Focusing on the present Motion, on June 17, 2026, at 7:56 p.m., Cross-Complainants' then-counsel, Keeley Vega of Thompson Hine LLP, sent an email to Cross-Defendants' counsel, Austin Houvener of Toschi Doyle Houvener & Wellen with a settlement demand. Declaration of David Plagens ("Plagens Decl.") in Support of Motion at ¶ 3. The email stated: "I am writing to check in on the settlement offer from the Plagens communicated to you verbally this afternoon: a $100k payment in exchange for the dismissal of the Plagens' cross claims with no non-monetary terms." Plagens Decl., Ex. A (the "June 17 email"). The June 17 email requested "a response by no later than 9:00 am tomorrow in view of the scheduled trial setting" *Id.*

On June 18, 2026, at 8:23 a.m., Mr. Houvener, counsel for the Nandakumars, replied by email, stating: "CSAA, on behalf of its insureds Rekha and Swaminathan Nandakumar, accepts the below demand from the Plagens for $100,000." Plagens Decl., Ex. B (the "June 18 reply email"). Yet the same June 18 reply email stated: "Attached please find a draft release for your clients' review and comment. This is a draft and we ask that your clients track changes and send any requested changes back for review. If there are no changes, please have your clients sign and return along with your office's requested draft instructions" *Id.*

Importantly the draft attached to the July 18 reply email contains release a general release of all claims, forever and fully releasing, acquitting and discharging the Nandakumars and their agents, servants, successors, heirs, executors, administrators, indemnitors, plus express waiver of Section 1542 of the Civil Code, plus lien-satisfaction conditions precedent to payment, plus attorney-fee-shifting provisions. Those are all non-monetary terms. Plagens Decl., Ex. C (the "July 18 draft release")

Moreover, on June 18, 2026, "David and Lisa Plagens personally appeared in open court and represented to the Court that there was no resolution of their Cross-Complaint against Cross-Defendants." Declaration of Rhiannon Hayward ("Hayward Decl.") in Opposition to Motion at ¶ 6. The minute order from that hearing reflects that David Plagens and Lisa Plagens were present and "advise the Court that the Cross-Complaint has not been settled." Minute Order (filed: June 18, 2026), attached as Ex. 2 to Hayward Decl.

On June 20, 2026, Ms. Vega, on behalf of the Plagens, sent an email to Cross-Defendants' counsel stating that "the Plagens believe CSAA's proposed release goes substantially beyond their offer and CSAA's acceptance thereof. It is their view that the additional releases, waivers, and other terms were not part of the offer that was made or accepted." Hayward Decl., Ex. 3. That June 20 email attached "a proposed agreement that reflects those initial terms: $100k payment, dismissal of cross claims, and no additional terms" *Id.* The June 20 email further stated: "If CSAA wishes to include the additional terms, the Plagens ask to increase the payment to $175k as additional consideration" *Id.*, attaching two proposed settlement agreements: one reflecting the $100k/no-additional-terms version, and one reflecting the $175k/additional-terms version. Hayward Decl., Exs. 4 & 5.

Cross-Defendants did not accept the $175,000 counterproposal, and "no further agreement was reached between the parties regarding the terms of any settlement of the Cross-Complaint." Hayword Decl. at ¶8. No release was ever signed by any party. *Id.*

Next, on June 24, 2026, Lisa and David Plagens "sent Mr. Houvener and Ms. Hayward a written memorialization of the June 18 settlement[,]"Plagens Decl. at ¶ 11, which states that it "reflects only the agreed terms: payment of $100,000 in exchange for dismissal of the Cross-Complaint, with no non-monetary terms." Plagens Decl., Ex. D.

The Cross-Complaint has not been dismissed.

Cross-Complainants now move under Code of Civil Procedure section 664.6 to enforce the alleged settlement agreement formed by the June 17–18, 2026 email exchange, seeking an order requiring "payment of $100,000 in exchange for dismissal with prejudice of the Cross-Complaint, with no additional non-monetary terms beyond dismissal of the Cross-Complaint." Motion 2:1-4

Legal Standard on Motion to Enforce Settlement Agreement

California Code of Civil Procedure Section 664.6 authorizes enforcement of agreements where "parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case[.]" C.C.P. §664.6. To enforce a settlement under Section 664.6, the moving party bears the burden of demonstrating by a preponderance of the evidence that a valid, binding settlement was reached. (*Osumi v. Sutton* (2007) 151 Cal.App.4th 1355, 1357; Code Civ. Proc., § 664.6.)

Whether a binding contract was formed requires mutual assent to all material terms. An acceptance must be absolute and unqualified; if it varies or adds material terms, it is a counteroffer, *not* an acceptance. (*BTHHM Berkeley, LLC v. Johnston* (2024) 100 Cal.App.5th 1220, 1224; *Siri v. Sutter Home Winery* (2022) 82 Cal.App.5th 685, 691.) A qualified or conditional acceptance is not an acceptance but a counteroffer. (*Siri v. Sutter Home Winery* (2022) 82 Cal.App.5th 685, 691.) An ostensible acceptance that adds material terms operates as a counteroffer requiring acceptance before any contract arises.

In resolving the Motion, the Court applies an objective standard, asking what a reasonable person in the position of the offeror would understand the offeree's response to mean. (*Weddington Productions, Inc. v. Flick* (1998) 60 Cal.App.4th 793; *Roth v. Malson* (1998) 67 Cal.App.4th 552, 557)

Analysis of the Motion

I. The June 17-18, 2026 email exchange between attorneys for the parties did not form a binding settlement agreement.

The Plagens Cross-Complainants contend that the June 17–18, 2026 attorney-signed email exchange constitutes a binding, enforceable settlement agreement under Code of Civil Procedure Section 664.6 with mutual assent on all material terms. The Court respectfully disagrees. Cross-Complainants have not carried their burden to prove by a preponderance of the evidence that a valid, binding settlement was reached.

The Motion fails because the June 18, 2026 email response from the Nandakumars' counsel was a counteroffer rather than an unqualified acceptance, and therefore no contract was formed. That June 18 email from the Nandakumars' counsel simultaneously stated acceptance of the $100,000 demand *but also* attached a draft release containing non-monetary terms that the Plagens' offer expressly excluded. Under the objective standard governing contract formation and the mirror-image rule, that response varied the terms of the offer and therefore operated as a counteroffer, *not* an acceptance (*Siri v. Sutter Home Winery* (2022) 82 Cal.App.5th 685, 691.) Because there was no acceptance, no binding settlement agreement was formed so this Motion fails.

A. The June 18, 2026 Email from the Nandakumars' counsel was a counteroffer, *not* an acceptance of the Plagens' offer.

As shown in the record as detailed in the Facts section above, the June 18 email from Cross-Defendants' counsel stated: "CSAA, on behalf of its insureds Rekha and Swaminathan Nandakumar, accepts the below demand from the Plagens for $100,000." Read in isolation, that language might appear to be an unqualified acceptance of the June 17, 2026 demand for a $100k payment in exchange for the dismissal of the Plagens' cross claims with no non-monetary terms. *But* the same June 18 email from the Nandakumar's counsel email simultaneously attached a draft release for Cross-Complainants' review and comment.

The draft release attached to the June 18 email contained broad provisions that are *materially different* from the narrow payment-and-dismissal offer made by the Plagens June 17 email. The attached draft release included a general release of all claims, forever and fully releasing, acquitting and discharging the Nandakumars and their agents, servants, successors, heirs, executors, administrators, indemnitors, plus express waiver of Section 1542 of the Civil Code, *plus* lien-satisfaction conditions precedent to payment, *plus* attorney-fee-shifting provisions among others. *Those are all non-monetary terms*—exactly what the Plagens excluded from their offer.

The Plagens' June 17 offer was crystal clear: it expressly stated "no non-monetary terms." Under the objective standard governing contract formation, a reasonable person in Plagens' position as the offeror would not understand the June 18 reply email from the Nandakumar's counsel—that simultaneously says we accept your demand *but* attaches a release containing a broad array of non-monetary terms that the offer expressly excluded—as an acceptance. That is not an unqualified acceptance of an offer that said no non-monetary terms; rather, that is a response that accepts the monetary core but introduces non-monetary provisions for further negotiation.

An acceptance that varies, qualifies, or adds terms to an offer operates as a rejection and counteroffer rather than an acceptance, precluding contract formation. (*Weddington Productions, Inc. v. Flick* (1998) 60 Cal.App.4th 793.) An acceptance must be absolute and unqualified; if it varies or adds material terms, it is a counteroffer rather than an acceptance. (*Id., BTHHM Berkeley, LLC v. Johnston* (2024) 100 Cal.App.5th 1220, 1224; *Siri v. Sutter Home Winery* (2022) 82 Cal.App.5th 685, 691.) A qualified or conditional acceptance is not an acceptance but a counteroffer. (*Siri v. Sutter Home Winery* (2022) 82 Cal.App.5th 685, 691.).

On this record, the June 18 email from the Nandakumar's counsel, read as a whole and objectively, was not an unqualified acceptance but a counteroffer. The Plagens demanded payment and dismissal with no non-monetary terms. The Nandakumars responded with acceptance language but simultaneously attached a release containing non-monetary terms and requested that those terms be reviewed, revised if necessary, and signed. Under the mirror-image rule, that response varied the terms of the offer and therefore operated as a counteroffer. (*Siri v. Sutter Home Winery* (2022) 82 Cal.App.5th 685, 691.) Because the June 18 email was a counteroffer rather than an acceptance, no contract was formed on June 18, 2026.

B. The phrase 'No Non-Monetary Terms' is not ambiguous.

The Plagens now contend that the phrase "no non-monetary terms" that they used in their June 17 offer is ambiguous and reasonably susceptible to a narrower construction that would permit standard release provisions while excluding only fence-related obligations. To that end, the Plagens urge the Court to consider the parties' 2019 settlement agreement, the June 15, 2026 mediation context, and the course of dealing between the parties as extrinsic evidence showing that no non-monetary terms meant no fence-related obligations rather than no release language.

Whether contractual language is ambiguous is a question of law for the court to decide. (Civ. Code, § 1542; *Pac. Gas & Elec. Co. v. G. W. Thomas Drayage & Rigging Co.* (1968) 69 Cal.2d 33, 37.) Language is ambiguous only if it is reasonably susceptible to more than one interpretation. (§ 1542.) Under California law, the court must first provisionally consider the extrinsic evidence offered by the parties and then decide whether the disputed language is reasonably susceptible to the meaning urged. (*Pac. Gas & Elec. Co. v. G. W. Thomas Drayage & Rigging Co.* (1968) 69 Cal.2d 33, 39.) Extrinsic evidence is inadmissible if the language is not reasonably susceptible to the proffered interpretation. (*Dore v. Arnold Worldwide, Inc.* (2006) 39 Cal.4th 384, 389.)

The Court has provisionally considered the extrinsic evidence offered by Cross-Defendants and finds that the phrase no non-monetary terms is *not* reasonably susceptible to the narrower construction they urge. A natural reading of the phrase "no non-monetary terms" plainly excludes any obligation, condition, or provision that does not involve the exchange of money. The phrase is categorical, not limited to fence and property issues. Nothing in that language limits 'non-monetary terms' to fence reconstruction terms. A general release, a Civil Code section 1542 waiver, an indemnity, a confidentiality clause, an attorney-fee-shifting provision, and a lien-satisfaction condition are all non-monetary terms. By using that phrase in their June 17 offer, the Plagens thus excluded all of them as a categorical matter.

If the offer meant to permit a standard general release or section 1542 waiver—which are ordinarily included in settlement agreements involving property disputes or ongoing relationships—it would have said no additional non-monetary terms or no non-monetary terms *except* a standard mutual release or used some other limiting language. But the Plagens' clear June 17 offer as written contains no such limitation. The language says no non-monetary terms, *not* no additional fence work. As a matter of ordinary English usage, no non-monetary terms is not reasonably read as permitting standard release, waiver, indemnity, confidentiality, non-disparagement, and fee-shifting terms. The narrower reading Cross-Defendants propose does *interpret* the words the Plagens used in their clear June 17 offer; rather, it *rewrites* the June 17 offer to include a limitation that was not in that offer.

The parties' 2019 settlement agreement does not support Cross-Defendants' position either. That agreement expressly included a mutual release of all known and unknown claims and an express waiver of Civil Code 1542. Hayword Decl at ¶¶ 5, 17. Because that agreement expressly spelled out the release and expressly recited the section 1542 waiver, it shows that when these parties want such provisions, they know how to say so. It does not show they treat a release or section 1542 waiver as falling outside the category of non-monetary terms; it shows they separately negotiate and document such terms when desired.

Regarding the mediation, mediation is protected from disclosure by Evidence Code section 1119. That statute makes inadmissible evidence of anything said or any admission made for the purpose of, in the course of, or pursuant to a mediation. Evid. Code § 1119. It likewise protects communications, negotiations, and settlement discussions in the course of a mediation. (*Id.*) Those protections are absolute and admit no judicially created exceptions. (*Foxgate Homeowners' Ass'n v. Bramalea California, Inc.* (2001) 26 Cal.4th 1.) They apply broadly to communications made for the purpose of, in the course of, or pursuant to mediation. (*Cassel v. Superior Court* (2011) 51 Cal.4th 113.) Although the June 17 email was sent after the mediation, any attempt to use mediation statements to interpret the June 17 demand would run afoul of the confidentiality bar. (*Simmons v. Ghaderi* (2008) 44 Cal.4th 570; *Foxgate Homeowners' Ass'n v. Bramalea California, Inc.* (2001) 26 Cal.4th 1; *Cassel v. Superior Court* (2011) 51 Cal.4th 113.) The Court therefore does not consider the June 15 mediation discussions as admissible extrinsic evidence of meaning for the purposes of resolving this Motion.

C. The Parties' conduct after June 18, 2026 belies that there was settlement agreement here.

The parties' conduct on and after June 18, 2026 reinforces the Court's finding that mutual assent on all material terms did not exist here. Statements and conduct of a party may be considered as party admissions bearing on assent and the parties' understanding of whether a complete agreement was reached. (*Eagle Fire & Water Restoration, Inc. v. City of Dinuba* (2024) 102 Cal.App.5th 448.)

Here, on June 18, 2026, David and Lisa Plagens personally appeared in open court and represented to the Court that there was *no* resolution of their Cross-Complaint against Cross-Defendants. The Minute Order states that they advised the Court that the Cross-Complaint has not been settled. This in-court statement is powerful evidence. It is a party admission made by the Plagens themselves, in open court, under circumstances calling for candor to the tribunal. (*Greisman v. FCA US, LLC* (2024) 103 Cal.App.5th 1310; *Eagle Fire & Water Restoration, Inc. v. City of Dinuba* (2024) 102 Cal.App.5th 448.)

The fact that the Plagens represented to the Court on June 18, 2026, that no settlement had been reached strongly suggests they did not objectively understand the June 18, 2026 email from the Nandakumars' counsel as an unqualified acceptance of the Plagens' June 17, 2026 offer.

Moreover, a few days later on June 20, 2026, attorney Vega, on behalf of Cross-Complainants, sent an email stating that "the Plagens believe CSAA's proposed release goes substantially beyond their offer and CSAA's acceptance thereof" and "[i]t is their view that the additional releases, waivers, and other terms were not part of the offer that was made or accepted." The email attached "a proposed agreement that reflects those initial terms: $100k payment, dismissal of cross claims, and no additional terms" The same email then stated: "If CSAA wishes to include the additional terms, the Plagens ask to increase the payment to $175k as additional consideration," attaching two proposed settlement agreements: one reflecting the $100k/no-additional-terms version, and one reflecting the $175k/additional-terms version.

That June 20, 2026 email demonstrates that by that date, both sides plainly had a live disagreement about whether the release terms attached to the June 18, 2026 email were part of any bargain. That disagreement demonstrates the *absence* of mutual assent on all material terms at inception. The fact that Cross-Complainants offered two alternative agreements—one for $100,000 with no additional terms and one for $175,000 with broader release language—shows the payment obligation and the contested release package were still being negotiated as alternative bargains, not as severable fragments of an already consummated contract. This reinforces the Court's finding above that no settlement agreement was reached here.[3]

Conclusion & Order

The Plagens Cross-Complainants have not carried their burden as the moving party to prove by a preponderance of the evidence that a valid, binding settlement agreement was reached. The June 18, 2026 reply email by the Nandakumars' counsel, read objectively and as a whole, was a counteroffer and *not* an unqualified acceptance because it simultaneously stated acceptance of the $100,000 demand but also attached a draft release containing non-monetary terms that the Plagens' June 17, 2026 offer expressly excluded. The Plagens' Cross-Complainants' own June 18, 2026 in-court representation that the Cross-Complaint has not been settled, and their June 20, 2026 dual settlement proposal reinforce the Court's finding that mutual assent on all material terms was not established here.

Accordingly, after reviewing all papers and the record, and in the broad exercise of its discretion, the Court **DENIES** the Motion in all respects.

SO ORDERED.

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[3] In light of the Court's ruling that no settlement agreement exists here, the Court need not and does not reach additional issues raised by the parties that are mooted by this ruling, e.g., issues regarding enforcement of the (nonexistent) settlement agreement.

Date: September 9, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

Line 7

Case Name: *Bryan Martin v. General Motors, LLC*

Case No.: 25CV461494

See ORDER above. (As this Motion was withdraw at the request of the moving party GM on August 28, 2026, this Motion is **OFF CALENDAR.**)

Line 8

Case Name: *Daniel Cahn v. Daric Holdings Incorporated, et al.*

Case No.: 25CV471178

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Nonparty Daric Technologies, Inc. moves under Code of Civil Procedure Section 1030 to require Plaintiff Daniel Cahn ("Plaintiff") to post an undertaking in the amount of $222,000, or such other amount as the Court deems appropriate, to secure Daric's recoverable costs, arbitrator fees, and attorneys' fees in this action, and staying this action until Plaintiff posts the required undertaking. Notice of Motion (the "Motion") at 2:4-9 (filed: August 10, 2026). The Motion is made on the grounds that Plaintiff resides outside the State of California and Daric Technologies, Inc. has a reasonable possibility of obtaining judgment in this action. *Id.* at 2:10-12.

The Motion came on for hearing on September 9, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties and the moving nonparty the full and fair opportunity to be heard, the Court finds and rules as follows.

Fact Allegations & Procedural Posture

Plaintiff Daniel Cahn, a Maryland and Florida resident with advanced degrees in engineering and business and over fifteen years of experience in technology leadership roles, alleges that Defendant Daric Holdings Incorporated recruited him from a $300,000-per-year position at Amazon by representing that: (a) Daric Holdings Incorporated had a mature, revenue-generating relationship with SAP, (b) approximately 50–60 existing clients would be upsold Daric Holdings Incorporated's product in the coming months, (c) Daric Holdings Incorporated projected $25 million in revenue for both 2023 and 2024, and (d)the software would be priced at $1 per account per month. Complaint at ¶¶ 11-15 (filed July 22, 2025).

Plaintiff further alleges that he entered into an Individual Contributor Agreement with Defendant Daric Holdings Incorporated in October 2023 Declaration of Gregory Ryan, worked full-time and exclusively for Daric Holdings Incorporated from December 2023 through June 2025, helped close a $252,000 Peraton deal, *but* then received only $5,200 in total compensation, discovered that critical representations about the SAP Fioneer contract, pricing, and client pipeline were false *id.*, and was terminated in July 2025 in retaliation for raising concerns about defendants' conduct. Complaint at ¶¶ 22-26, 32, 53.

Based on those fact allegations, on July 22, 2025, Plaintiff filed this Complaint against Defendant Daric Holdings Incorporated, bringing with nine causes of action: breach of contract, fraud in the inducement, breach of the implied covenant of good faith and fair dealing, unjust enrichment, accounting, Labor Code minimum wage and overtime violations, Labor Code retaliation, wrongful termination in violation of public policy, and violation of the Unfair Competition Law.

Nonparty Daric Technologies Inc. now moves for an undertaking of $222,000, comprising attorney's fees estimated at $166,435 deposition reporter fees of $6,000, filing fees of $120, arbitrator fees of $40,000 to $45,000, and arbitration hearing court reporter and transcript costs of $10,000. Motion at 2:-2-9; Declaration of Jaskaran Gill in Support of Motion ("Gill Decl.") at ¶¶ 3, 5, 6, 17 19.)

Nonparty Daric Technologies Inc. brings this Motion, but Plaintiff did not sue Daric Technologies Inc., whose name appears nowhere in the July 22, 2025 Complaint. Daric Technologies Inc. does indeed assert that it is the successor-in-interest to Daric Holdings and therefore the real party in interest. Reply at 3:3-16. And the Notice of Appearance filed on June 29, 2026 states that counsel appears "for Defendant Daric Technologies Inc. erroneously sued as DARIC HOLDINGS INCORPORATED." Notice at 2:3-4.

But nonparty Daric Technologies Inc. was not incorporated until January 26, 2026*, more than six months after* the Complaint was filed on July 22, 2025. The two corporations have different formation dates and separate entity numbers.

Based on its review of all papers and the record, the Court finds that Daric Technologies Inc. is not a party to this action because Plaintiff did not sue Daric Technologies Inc. in its July 22, 2025 Complaint. And Daric Technologies Inc. has not otherwise joined or intervened in this action. Hence, it's a nonparty.

Analysis of the Motion

I. The Motion Fails because nonparty Daric Technologies Inc. is not a defendant and so lacks standing to bring this Section 1030 Motion under the plain text of Section 1030.

The plain text of California Code of Civil Procedure section 1030 authorizes only a "defendant" to seek an undertaking from an out-of-state plaintiff. C.C.P. § 1030 (a) & (b) & (d) & (e). The statutory text does not say any person or entity related to a defendant may move: it says "the defendant" may move. C.C.P. § 1030 (a) So the moving party must first establish defendant status before obtaining relief under Section 1030, and courts construe section 1030 according to its specified party roles without enlargement. (*Baltayan v. Estate of Getemyan* (2001) 90 Cal.App.4th 1427, 1430; *Yao v. Superior Court* (2002) 104 Cal.App.4th 327, 331.)

Section 1030 statute's structure confirms this threshold requirement that only a defendant can bring this motion; *e.g.*, Section 1030(d) permits dismissal only "as to *the defendant* in whose favor the order requiring the undertaking was made"—which as a matter of logic and law presupposes that a claim is actually pending against the moving defendant. C.C.P. § 1030(d) (emphasis added).

As Daric Technologies Inc. is not a defendant in this action, Daric Technologies Inc. fails to establish its standing to bring this Motion. The operative July 22, 2025 Complaint names DARIC HOLDINGS INCORPORATED aka DARIC HOLDINGS INC., a California corporation, *not* Daric Technologies Inc.

The chronology is independently dispositive. California Secretary of State materials, of which this Court takes Judicial Notice, show that Daric Technologies Inc. was incorporated on January 26, 2026—but this the Complaint was filed on July 22, 2025. The two corporations have different formation dates and separate entity numbers. That timing belies any suggestion that Daric Technologies Inc. was the original contracting party and let alone that Plaintiff "meant" to sue the *non-existent* Daric Technologies Inc. on July 22, 2025 in Plaintiff's Complaint.

Moreover, the Court has spent a great deal of time independently searching through the voluminous record in this case to see if, perhaps, an amended complaint, stipulation, order of substitution, or intervention exists naming Daric Technologies Inc. as a party. None exists. Counsel well knows how to stipulate or move to substitute or intervene its client as a party in a case. But here they never did so.

Instead, here in its Notice of Motion that it filed on August 10, 2026, Daric Technologies Inc. *made up a false caption* on the cover page—"DANIEL CANE V. **DARIC TECHNOLOGIES INC.** [et al.]", and then falsely told the Court in the first line of that Notice of Motion that "**Defendant** Daric Technologies Inc. ("Daric"), erroneously sued as Daric Holdings Incorporated, will and hereby does move. . . ." Notice of Motion at 1:15-19, 2:4-6. (emphasis added). Nonsense on stilts. Daric Technologies Inc. does not magically become a defendant with standing to bring a Section 1030 motion in this case by making up a Caption and then representing to the Court that it is "Defendant" when it well knows that it is not because was never sued in this case and that its counsel never made any motion to make Daric Holdings Incorporated a defendant in this case. *Ipse dixit* doesn't work here.

So its unilateral "relabeling" (to be charitable) by Daric Technologies Inc. of the caption of this Motion does not make it a Defendant. Nor does the "Notice of Errata Re Caption" that Daric Technologies Inc. filed on August 24, 2026 do anything to transform it into a Defendant. That Errata does nothing more than *unconvincingly* try to explain away why Darin Technologies Inc. put its name in its made-up caption of this Motion that it filed on August 10, 2026 when Daric Technologies Inc. was never named in the Complaint.

And of course, California law distinguishes correction of a true misnomer from substitution of a *distinct legal entity*. The named defendant—DARIC HOLDINGS INCORPORATED was an existing corporation on July 22, 2025 when this Complaint was filed, and the agreement sued upon names that same existing corporation. Daric Technologies Inc. is a different corporation formed half a year later.

Because there is no claim in this case against Daric Technologies Inc. on the face of the July 22, 2025 Complaint, there is nothing the Court *could* dismiss as to Daric Technologies Inc. under Section 1030(d). Daric Technologies Inc. therefore lacks statutory standing to bring a Section 1030 motion.

Daric Technologies Inc.'s assertion that it is the legal successor to Daric Holdings under a formal Successor Agreement (Reply at 3:3-16) does *not* cure this defect. Under California law, a purchaser of assets does not assume the seller's liabilities unless one of four exceptions applies: express or implied assumption, merger or consolidation, mere continuation, or a fraudulent transfer designed to escape liabilities. (*Ray v. Alad Corp.* (1977) 19 Cal.3d 22, 28; *Hernandez v. Enter. Rent-A-Car Co. of San Francisco* (2019) 37 Cal.App.5th 187, 189.) Successor liability is an equitable doctrine and must be affirmatively established by the party asserting it. (*Brown Bark III v. Haver*, No. G047198 (Cal. Ct. App. Sept. 13, 2013).)

The Successor Agreement itself is not in the record before the Court. The supporting Declarations, which likewise bear same false caption as the Notice of Motion, define "Daric" as "Daric Technologies Inc." and then repeat the falsehood that "Plaintiff filed this action against Daric[.]" Decl. of Gregory Ryan at 1:26-27, 2:3-4; *accord* Decl. of Vasant Ramachandran at :1:26-28. Not true. Plaintiff did not file this action against Daric Technologies Inc.

Nor do those supporting Declarations do not explain how Daric Technologies Inc. relates to Defendant Daric Holdings Incorporation let alone establish assumption, merger, consolidation, or continuation.

Moreover, the Court's review of California Secretary of State materials, of which the Court takes Judicial Notice, shows no merger, no acquisition, no assignment of liabilities, and no corporate succession between nonparty Daric Technologies Inc. and Defendant Daric Holdings Incorporation.

Based on its review of all the papers and the record, and in the broad exercise of its discretion, the Court finds that the moving nonparty Darin Technologies Inc. has *not* carried its burden to prove successor status through competent evidence satisfying any recognized exception. *Ray v. Alad Corp.* (1977) 19 Cal.3d 22, 28; *Hernandez v. Enter. Rent-A-Car Co. of San Francisco* (2019) 37 Cal.App.5th 187, 189; *Brown Bark III v. Haver*, No. G047198 (Cal. Ct. App. Sept. 13, 2013); *McClellan v. Northridge Park Townhome Owners Ass'n* (2001) 89 Cal.App.4th 746, 749)

Accordingly, this Section 1030 Motion is **DENIED** on the threshold ground that Daric Technologies Inc. is not a defendant in this action and thus lacks standing to bring this Motion under the plain text of Code of Civil Procedure Section 1030.

Conclusion & Order

Based on its review of all papers and the record, and in the broad exercise of its direction, the Court **DENIES** the Section 1030 Motion of nonparty Daric Technologies Inc. because Daric Technologies Inc. is not a defendant in this action and thus lacks standing to bring this Section 1030 Motion under the plain text of Section 1030 itself. *See* C.C.P. § 1030(a) ("*. . . . the defendant* may . . . by noticed motion") & (b) (". . . fees *the defendant* has incurred ") & (d) (". . . as *to the defendant in whose favor* the order requiring the undertaking was made") & (e) ("*If the defendant files a motion* for an order requiring an undertaking. . . .") (emphasis added).

SO ORDERED.

Date: September 9, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

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Line 10

Line 11

Line 12

Line 13

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